

## Neelam vs Rajbir on 16 November, 2023

Neutral Citation No:=2023:PHHC:14

TA-404-2023 (O&M)

Neutral Citation No.: 2023:PHHC:145866

-1-

IN THE HIGH COURT OF PUNJAB AND HARYANA  
AT CHANDIGARH

205

TA-404-2023 (O&M)  
Decided on: 16.11.2023

Neelam

...Applicant/Petitioner

Versus

Rajbir

...Respondent

CORAM: HON'BLE MR. JUSTICE SANJAY VASHISTH

Present: Mr. Mayank Yadav, Advocate for  
Mr. S.K. Yadav, Advocate  
for the Applicant/petitioner.

None for the respondent, despite service.

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SANJAY VASHISTH, J. (Oral)

1. Present transfer application, under Section 24 CPC, has been filed by the petitioner - wife, for seeking transfer of the petition, bearing No. HMA/871/2022, filed by the respondent - husband, under Section 13 (1) (ia) (ib) of the Hindu Marriage Act, 1955, titled as "Rajbir Vs. Neelam", presently pending in the Court of Learned Principal Judge, Family Court, Jhajjar, to any Court of competent jurisdiction at Narnaul.

2. The present transfer petition has been filed, inter alia, on the following grounds:-

i) Petitioner-wife and respondent-husband got married on 19.04.2019, at Village Mittarpura, Tehsil Narnaul, District 1 of 7 Neutral Citation No:=2023:PHHC:145866 Neutral Citation No.: 2023:PHHC:145866 TA-404-2023 (O&M) -2-

Mahendergarh, according to the Hindu rites and ceremonies, however, no child is born out of the said wedlock.

ii) Petitioner-wife filed a petition under Section 125 Cr.P.C. for seeking maintenance, which is pending in the Court at Narnaul. Petitioner-wife has instituted a petition under Section 12 of the Protection of Women from Domestic Violence Act, 2005, which is pending in the Court at Narnaul. Petitioner-wife has also filed a complaint, on the basis of which FIR No.252 dated 09.07.2019, under Sections 323, 328, 498-A IPC has been registered at Police Station Beri, District Jhajjar, the same is pending for prosecution witnesses .

iii) Traveling from Jhajjar to Narnaul, is a distance of around 100 Kms (one side), which takes around 3 hours, thus, causing extreme hardships to the petitioner-wife.

iv) Petitioner-wife is not earning anything and is financially dependent on her parents. Due to lack of convenient transportation options, she is compelled to rely on public transit, resulting in significant hardships.

v) Financial condition of the parental home of the petitioner-wife is also not sound, and her parental family lives in a hand to mouth condition.

3. Learned counsel for the petitioner also informs the Court that real sister of the petitioner, namely, Sunita is also married to the real brother of the respondent. He also submits that the proceedings of the divorce petition qua her sister has already been transferred from Jhajjar to Narnaul by this Court vide order dated 29.03.2023 passed in TA No.403 of 2023.

4. I have heard learned counsel for the petitioner and gone through the material available on record.

5. In the facts and circumstances similar to the present case, in 2 of 7 Neutral Citation No:=2023:PHHC:145866 Neutral Citation No.: 2023:PHHC:145866 TA-404-2023 (O&M) -3- paragraph Nos. 9 & 10 of the judgment rendered in the case of N.C.V. Aishwarya v. A.S. Saravana Karthik Sha, AIR 2022 SC 4318, Hon'ble the Apex Court has held as under:

"9. The cardinal principle for exercise of power under section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing

socioeconomic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer.

10. Further, when two or more proceedings are pending in different Courts between the same parties which raise common question of fact and law, and when the decisions in the cases are interdependent, it is desirable that they should be tried together by the same Judge so as to avoid multiplicity in trial of the same issues and conflict of decisions."

6. Further, Hon'ble the Apex Court in *Rajani Kishor Pradeshi v. Kishor Babulal Pardeshi*, (2005) 12 SCC 237, has observed that "while deciding the transfer application, the Courts are required to give more weightage and consideration to the convenience of the female litigants and transfer of legal proceedings from one court to another should ordinary be allowed, taking into consideration their convenience and the Courts should desist from putting female litigants under undue hardships."

7. However, to avoid any misuse of the lenient view by the female litigants, Hon'ble the Apex Court in *Anindita Das v. Srijit Das*, (2006) 9 SCC 197, has also cautioned that the Courts should ensure that such leniency 3 of 7 Neutral Citation No:=2023:PHHC:145866 Neutral Citation No.: 2023:PHHC:145866 TA-404-2023 (O&M) -4- given to the female litigants should not be misused. Relevant Paragraph 3 of the aforesaid judgment says as under:

"3. Even otherwise, it must be seen that at one stage this Court was showing leniency to ladies. But since then it has been found that a large number of transfer petitions are filed by women taking advantage of the leniency taken by this Court. On an average at least 10 to 15 transfer petitions are on Board of each Court on each admission day. It is, therefore, clear that leniency of this Court is being misused by the women."

8. Thus, this Court is of the view that while adjudicating a transfer petition initiated by the wife in the context of a matrimonial dispute, the Court must take into account a comprehensive array of the following factors:-

(a) Economic condition and earning capacity of the parties, i.e. husband and wife;

(b) Social standing of the wife and her dependency on her parents;

(c) Custody of any minor children involved;

- (d) Education of the children, if any;
- (e) Physical well-being of both, i.e. wife and husband;
- (f) Pending litigation(s) between the parties including criminal cases, if any;
- (h) Accessibility of the location from where the wife resides to the court where the case is pending;
- (i) Availability of convenient commuting options

Undoubtedly, only a harmonious consideration of all these vital aspects would ensure a just and equitable decision in such cases.

9. Thus, applying the principles of law, laid down by Hon'ble the Apex Court in N.C.V Aishwarya's case (supra), Rajani Kishor's case 4 of 7 Neutral Citation No:=2023:PHHC:145866 Neutral Citation No.: 2023:PHHC:145866 TA-404-2023 (O&M) -5- (supra) and Anindita Das's case (supra), this Court deems it appropriate to allow the present petition, by issuing following directions:

(i) Petition filed by respondent - husband under Section 13 (1) (ia) (ib) of the Hindu Marriage Act, 1955, bearing No. HMA/871/2022, titled as "Rajbir Vs. Neelam", pending in the Court of Learned Principal Judge, Family Court, Jhajjar, is transferred to a Court of competent jurisdiction within Sessions Division Narnaul.

(ii) Learned District Judge, Jhajjar, is directed to transfer complete record pertaining to the aforesaid case to learned District Judge, Narnaul, by directing both the sides to appear before the Court of learned District Judge, Narnaul, on a particular date to be fixed by him, for further proceedings.

(iii) On receipt of record of the case, learned District Judge, Narnaul, will either keep the said case in his own Court or to assign the same to a Court having competent jurisdiction within Sessions Division Narnaul, to try the same.

(iv) The concerned Court at Narnaul, shall diligently strive to amicably resolve the marital discord between the parties by referring the matter to the Mediation and Conciliation Centre.

(v) After transfer at Narnaul, the concerned Court will accommodate the parties to the lis with at least one date in a calendar month.

10. However, liberty is granted to the respondent-husband to get the present transfer application/petition revived, if so advised, to contest the same, subject to the conditions that:

(i) Petitioner-wife has concealed any material fact or aspect while filing the present transfer application/petition, with an intention to mislead this Court for seeking transfer of the case.

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(ii) Respondent-husband is suffering from any substantial physical/mental disability or ailment.

OR

(iii) Respondent-husband will clear all arrears of maintenance amount, if any, in terms of a petition filed by the petitioner-wife either under Section 125 Cr.P.C. or Section 12 of the Domestic Violence Act or Section 24 of the Hindu Marriage Act, or under any other law.

AND

(iv) Respondent-husband will file an affidavit, giving an undertaking to pay Rs.1,000/- per day, to the petitioner- wife for attending the Court proceedings at Jhajjar, on each and every date of hearing of the case.

AND

(v) Alongwith the application for revival of the present transfer application/petition, respondent-husband will furnish a demand draft of Rs.25,000/- in favour of petitioner-wife, towards the litigation expenses, i.e. to pursue the case at Jhajjar.

11. Since the present transfer application/petition is being disposed of without issuing notice to the respondent, in order to ensure appearance of the parties before learned District Judge, Narnaul, as per the direction of learned District Judge, Jhajjar, it is also directed that a copy of this order be sent to the respondent through registered post, besides sending copies of this order to learned District Judges concerned, through email as well.

Petitioner through her counsel, is also directed to ensure her appearance accordingly.

Petition stands disposed of in above terms.

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(SANJAY VASHISTH)  
JUDGE

16.11.2023  
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|----------------------------|--------|
| Whether speaking/reasoned: | Yes/No |
| Whether Reportable:        | Yes/No |

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